

TENANCY AGREEMENT

DATED

25th October 2020

BETWEEN

SAI OBSERVATION FLATS LTD

AND

Ramesh Swamynathan and Muthupriya Ramesh

ASSURED SHORTHOLD

TENANCY AGREEMENT

RELATING TO:

Flat 6, Unit 1, Observation Court, 84 Princes Street, Ipswich IP1 1RY

Ref: SAC/TA/1411



01473 626 378

ASSURED SHORTHOLD TENANCY AGREEMENT

This document is intended to create an Assured Shorthold Tenancy Agreement in accordance with Section 19A of the Housing Act 1988 as amended. It gives the Tenant (as defined) a right to occupy the Premises (as defined) until the Agreement is brought to an end in accordance with the provisions contained in the Act. The Tenant understands that the Landlord (as defined) can recover possession at the end of the Term (as defined) and may also end the tenancy early if the Tenant fails to carry out their responsibilities.

Do not sign this agreement without reading it. By signing this document you are agreeing to all the conditions in it. If you do not understand it you should seek advice from a Solicitor, Citizens' Advice Bureau or Housing Advice Centre.

If completing this Agreement by hand make sure all information inserted is readable

The Name and Address of the Letting Agent (if any) who arranged this tenancy is:

Dr Sachin Karale
SAI Estates
Sachin Agile Industries (SAI) Ltd
17 Princes Street
Ipswich IP1 1PH

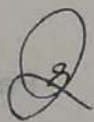
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DEFINITIONS

The Premises	The premises shall mean the premises referred to in Clause 2 below and shall include all or any parts of the dwelling-house, garden, paths, fences, boundaries or other outbuildings which form part of the let. Where the premises forms part of another property (e.g. in a block of flats), it will include the use, in common with others, of communal access ways and other similar facilities.
Binding Date	The date upon which the tenancy agreement becomes legally binding after it has been dated and both of the parties (or their authorised representatives) have signed it.
Landlord	The person or persons referred to in Clause 1.1 below or any other person or persons who at any relevant time own, or have a formal interest in, the premises that gives them the right to possession of the premises.
Tenant	The person or persons referred to in Clause 1.4 below, who at any relevant time is or are entitled to occupy the premises under the terms of this tenancy agreement.
Joint & Several Liability	Where there is more than one Tenant, all the Tenants will be jointly liable for the payment of all rents and liabilities due by the Tenants during the tenancy, including any breach of the agreement. Individually each Tenant is responsible for payment of all the rent and liabilities falling upon the Tenants, including any breach of the agreement, until all payments have been made in full.
Fixtures & Fittings	This shall include any of the Landlord's furniture, furnishings, sanitary-ware, decorative features, white goods, other equipment or any floor, ceiling or wall coverings, as well as any items listed in any Inventory supplied.
The Term / Tenancy	This shall include any extension or continuation, or any statutory periodic tenancy which may arise following the end of the period as set out in Clause 3 below.
Water Charges	This includes charges, rates or costs relating to water, sewerage and environmental services.
Utilities	This includes charges, rates or costs relating to telephone, gas, electricity, oil and Council Tax.
Masculine & Feminine and Singular & Plural	Any reference to either one gender shall include the other and any references in the singular shall include the plural if appropriate.
Agent	Any letting or management agent or any other duly authorised person, notified to the Tenant, who is acting from time to time on behalf of the Landlord.
Month / Monthly	This shall be taken to mean a calendar month.
Inventory	This refers to any document prepared by the Landlord, the Agent or an inventory clerk and provided to the Tenant detailing the Landlord's fixtures, fittings, furnishings, equipment, etc, as well as the décor and condition of the premises generally. Such document may subsequently be relied upon at the end of the tenancy in assessing damage or compensation for damage (over and above fair wear and tear) and so should be checked carefully at commencement of tenancy. Any significant mistakes, misdescriptions or other amendments should be notified to the Landlord or his Agent as soon as practicable after the tenancy starts. In order to avoid misunderstandings or disputes later, it is strongly recommended that this notification be in writing and a copy kept for future reference.

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1 PARTIES

- 1.1 The Landlords/ Agent: SAI OBSERVATION FLATS LTD
- 1.2 The Landlord's address: 17 Princes street, Ipswich IP1 1PH
- 1.3 Should the address given by the Landlord not be in England or Wales, the Landlord is required by law to provide an alternative address which is in England or Wales. The Landlord's alternative address (if applicable):
- 1.4 The Tenant: Ramesh Swamynathan and Muthupriya Ramesh

2 PROPERTY

- 2.1 The premises to be let is situated at Flat6,Unit1,Observation Court,84 Princes Street, Ipswich IP11RY
- 2.2 Any exclusion from the let premises (e.g. garage or other outbuildings etc) includes the following:
NIL.

3 TERM

- 3.1 The initial fixed term of the tenancy is till 24th April 2021
- 3.2 The commencement date of the tenancy (from and including) is 25th October 2020
- 3.3 The binding date of this Agreement is 25th October 2020

4 RENT

- 4.1 The rent amount per calendar month is £750.
- 4.2 Rent is payable in advance each calendar month.
- 4.3.1 The first payment of £750 deposit is to be made on or before the signing of this agreement and £850 to cover the rent of first month on or before the 1st day of the tenancy.

5 DEPOSIT

- 5.1 A security deposit amount of £850 is to be paid by the Tenant.
- 5.2 This is to be paid on or before the signing of this agreement or as stated in 4.3.1.
- 5.3 The deposit will be held in accordance with the DPS Rules of the Deposit Protection Scheme in which it has been held.
- 5.4 The Tenant is not entitled to any interest in respect of the deposit unless the DPS Rules so provide.
- 5.5 Subject to the DPS Rules, the deposit is held to pay for any financial loss suffered by the Landlord as a result of the breach of any Tenant obligation outlined under this agreement including non-payment of rent or utility/Council Tax bills, damage to the property or any of the items listed on the inventory.
- 5.6 Subject to the DPS Rules, the Landlord/agent will return the deposit, within 10 days, when the Tenant provides paid final accounts for gas, water, electricity, telephone and Council Tax and once the property has been checked.
- 5.7 If there is a disagreement this will be dealt with in accordance with the DPS Rules.
- 5.8 The Tenant should provide the Landlord/agent with a bank details/ forwarding address at the end of the tenancy to enable the return of the deposit, by bank transfer / cheque, to the Tenant.

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6 TENANT'S OBLIGATIONS

IMPORTANT: Should the Tenant breach any of the obligations set out hereunder, the Landlord may be entitled to claim damages or compensation from the Tenant, or may seek other appropriate legal remedies against the Tenant, which may include eviction.

6.1 Payments

- 6.1.1 To pay the rent and all other sums due to the Landlord timeously, whether formally demanded or not. The Landlord reserves the right to charge interest (calculated from day to day) at a rate of 3% over and above the Bank of England base rate on late payments and the Landlord shall be entitled to recover such interest as if it were rent.
- 6.1.2 To pay reasonable costs incurred for sending reminder letters and costs incurred for any cheque that does not clear.
- 6.1.3 Where there is more than one Tenant, each and every Tenant is to be jointly and severally liable for paying all the rent due in terms of this agreement and to keep to all the terms of this agreement.

6.2 Repairs

- 6.2.1 To repair any damage that was caused deliberately, negligently or carelessly, by the Tenant or any other person occupying or visiting the premises, including any broken glass in windows and repairing or replacing any damaged fittings and installations. Should the damages not be repaired, written notice may be given to repair the damage within a reasonable period of time. Should the damages still not be repaired within the period of notice given, the property may be entered (after 24 hours' notice, in writing) in order to carry out the work. The Tenant will be responsible for payment of the reasonable costs of this work.
- 6.2.2 To inform the Landlord of any repairs or faults in the structure or outside of the property, in any installation or in the communal areas.
- 6.2.3 To allow the Landlord or his agents to come into the property at all reasonable hours of the day to inspect the condition of the property, to carry out repairs or to do other work which must be carried out by law. At least 24 hours' written notice will be given before entering the property. In an emergency, the Tenant must allow the Landlord immediate access to the property.

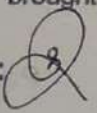
6.3 General

- 6.3.1 To keep the inside of the property in at least as good a condition as it was when the tenancy started (fair wear and tear excepted). Also, at the end of the tenancy to leave all furniture and fixtures in the rooms or places they were in at the beginning of the tenancy.
- 6.3.2 To pay for all electricity, gas and phone bills, water charges and Council Tax relating to the property and that apply during the period of the tenancy.
- 6.3.3 To notify, at the commencement of the tenancy, the local authority responsible for the collection of Council Tax, and the suppliers of such services or utilities, of the Tenant's liability for their charges

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and to have all accounts relevant to such charges transferred into the Tenant's name for the duration of the tenancy.

- 6.3.4 If the Tenant, by reason of default, non-payment or specific instruction, allows the utility or other services to be cut off or suspended, either during or at the end of the tenancy, he shall be liable to pay the costs associated with the reconnection or resuming of such services.
- 6.3.5 Not to change the supplier of the domestic utilities or services referred to above without the prior written consent of the Landlord (which will not be unreasonably withheld).
- 6.3.6 Not to change or transfer any existing telephone number at the premises without the prior written consent of the Landlord (which will not be unreasonably withheld).
- 6.3.7 When the property is left unattended, all the doors and windows must be locked and the burglar alarm (if any) activated. The Landlord is to be informed if the property is going to be empty for more than two weeks in a row.
- 6.3.8 To send all formal or legal Notices, orders or documents which are delivered to the premises by a third party and which relate to, or might significantly affect, the premises, its boundaries or adjacent properties, directly to the Landlord as soon as is practicable.
- 6.3.9 To only park vehicles in allocated parking spaces and without causing any obstructions.
- 6.3.10 To take reasonable precautions to prevent frost or similar damage to the property. If the property is going to be empty overnight or for more than 12 hours when the weather is likely to be cold, enough heating must be left on to prevent the water system freezing, alternatively the water supply must be turned off at the main stopcock and all the other water taps and valves in the property opened to drain the tanks of hot and cold water.
- 6.3.11 To defrost the fridge and/or freezer when necessary. Any damage caused as a result of a failure to do this will be the responsibility of the Tenant, who will incur any reasonable costs in this regard.
- 6.3.12 To take care not to cause an overload of the electrical circuits by the inappropriate use of multi socket electrical adaptors or extension cables when connecting appliances to the mains electric system.
- 6.3.13 To take care to replace any light bulbs, fluorescent tubes, fuses etc. as and when necessary during the tenancy and to ensure that they are in place and in working order at the end of the tenancy.
- 6.3.14 To pay the appropriate terrestrial television license fee, cable television or satellite television charges (if any) for the use of any television, or associated broadcast receiving equipment (if any) on the premises.
- 6.3.15 To take reasonable precautions to ensure that the premises are kept free of infestation by vermin, rodents and animal fleas. Should such an infestation occur and have been caused either directly or indirectly by the Tenant, the Tenant shall be responsible for the reasonable costs of fumigation, cleaning, etc. in order to remove the infestation.
- 6.3.16 To be responsible for maintaining the garden. It must be kept tidy and properly cultivated, with any grass cut regularly (unless it is a part of maintenance by landlord or management company).
- 6.3.17 Not to alter or add anything to the outside or structure of the property, or to the furniture, fixtures and household belongings that are on the inventory list (if any). There must not be any furniture, fixtures or household belongings which do not meet the Furniture and Furnishings (Fire Safety) Regulations brought onto the property.

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- 6.3.18 Not to dig up or to cut down any trees, shrubs, bushes or timber (if any), except with the Landlord's prior consent.
- 6.3.19 Not to use the premises, or to knowingly allow it to be used, for illegal or immoral purposes.
- 6.3.20 Not to change any burglar alarm codes (if any) without the prior written consent of the Landlord (which will not be unreasonably withheld).
- 6.3.21 Not to change, alter, add to or otherwise damage any locks or bolts on the premises (except in the case of an emergency) without the prior written consent of the Landlord (which will not be unreasonably withheld).
- 6.3.22 Not to do anything that may be a nuisance to or annoy neighbours. This includes not playing any radio, CD, record player, television or musical instrument in a way that will cause a nuisance, annoy the neighbours or be heard outside the premises between 11 pm and 7.30 am.
- 6.3.23 Not to tamper with any fire precautions.
- 6.3.24 Not to hang pictures or posters on the walls without the prior written consent of the Landlord (which will not be unreasonably withheld).
- 6.3.25 Not to use Blu-tack or any similar type of adhesive on the walls.
- 6.3.26 Not to sub-let the property or any part of it, or give up the property or any part of it to someone else.
- 6.3.27 Not to transfer the tenancy to someone else without the prior written consent of the Landlord (which will not be unreasonably withheld).
- 6.3.28 Not to carry on any profession, trade or business in the property.
- 6.3.29 Not to use the property as anything other than a home.
- 6.3.30 Not to block, or allow guests to obstruct, any of the communal areas.
- 6.3.31 Not to use any paraffin or portable gas heater.
- 6.3.32 Not to fix or place any aerial, satellite dish, notice, advertisement or board onto the premises (either internally or externally) without the prior written consent of the Landlord (which will not be unreasonably withheld).

6.4 End of Tenancy

- 6.4.1 At the end of the tenancy, the property, fixtures and fittings must be left in as good a condition as at the start of the tenancy (fair wear and tear excepted) and free from the Tenant's foodstuffs, furnishings, equipment, belongings and rubbish.
- 6.4.2 At the end of the tenancy, the premises must be cleaned to a standard equal to that of the check-in. This includes the cleaning of the premises, its fixtures and fittings, any carpets, curtains, bedding, blankets, linen, upholstery etc. which have become soiled, stained or marked during the tenancy. The Landlord may request receipts from the Tenant to demonstrate compliance with this clause.
- 6.4.3 Should notice be given that the Tenant will vacate the property before the agreement has ended, the Tenant will be responsible for all reasonable costs incurred in re-letting the property, as well as paying the rent until a new tenant takes occupation.
- 6.4.4 To pay the reasonable costs for replacing locks should any of the keys not be returned to the Landlord.
- 6.4.5 To pay any reasonable costs for obtaining replacement keys.

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- 6.4.6 To allow possible new tenants and prospective purchasers to look at the property with at least 24 hours' written notice during the last month of the tenancy.

7 LANDLORD'S OBLIGATIONS

IMPORTANT: Should the Landlord breach any of the obligations set out hereunder, the Tenant may be entitled to claim damages or compensation from the Landlord, or may seek other appropriate legal remedies against the Landlord.

- 7.1 To keep the property insured against fire and other usual comprehensive risks as long as insurance cover is available.
- 7.2 Not to interrupt or interfere with the Tenant's lawful occupation, use and enjoyment of the premises other than in an emergency or in the normal and lawful process of exercising or implementing the Landlord's rights and obligations under this agreement and having provided at least 24 hours prior written notification.
- 7.3 To be responsible for servicing and maintaining any gas heating system and making sure that all gas appliances within the property are checked by a British Gas or Corgi-registered technician every year, in line with the Gas Safety (Installation and Use) Regulations 1994.
- 7.4 To be responsible for making sure that any furniture provided keeps to the Furniture and Furnishings (Fire Safety) Regulations.
- 7.5 To return any part of the rent that has been paid for any period that the property could not be lived in due to fire or any other danger that has been insured for.
- 7.6 To keep the structure and outside of the property in good repair.
- 7.7 To keep the gas, water, electricity, space-heating and water-heating installations in good repair and proper working order.

8 GENERAL

8.1 Service of Notices

In accordance with Section 196 of the Law of Property Act 1925 as amended by the Recorded Delivery Service Act 1962, if the Landlord or his Agent delivers a Notice or document (and retains reasonable evidence of that delivery) required to be served under this agreement or any Act of Parliament, to the premises (or the last known address of the Tenant if different) by hand or sends it by recorded or registered delivery or by first-class post, addressed to the Tenant then the Tenant will be treated as though they have received it.

8.2 Surrender of the Tenancy by the Tenant

Strictly with the Landlord's or his Agent's prior written consent and subject to certain conditions that may include the Landlord's reasonable costs associated with the re-letting of the premises, the Tenant might be allowed to surrender or give up this tenancy before it could otherwise be lawfully ended.

8.3 Stamp Duty Land Tax

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The Tenant will be responsible for assessing the liability (if any) for Stamp Duty Land Tax (SDLT) and for submitting the appropriate forms and payments to the Inland Revenue. Inland Revenue may impose fines or penalties on the Tenant for failure to comply.

8.4 Forfeiture – Right of Re-Entry

In accordance with the Protection from Eviction Act 1977, the Landlord may apply for a Court Order to terminate the tenancy, evict the Tenant and re-enter the premises where the rent or any part of the rent has been unpaid for 14 days after becoming due, whether formally demanded or not, or if any material obligation or agreement on the Tenant's part is not complied with, or in the case where any of the following grounds exist:

Ground 8 - Both at the time of Notice of Intention to Commence Proceedings and at the time of the Court Proceedings, there is (a) at least eight weeks rent unpaid where rent is payable weekly or fortnightly; (b) at least two months rent unpaid where rent is payable monthly; (c) at least one quarters rent is more than three months in arrears if rent is payable quarterly; and (d) at least three months rent is more than three months in arrears if rent is payable yearly.

Ground 10 - Both at the time of Notice of Intention to Commence Proceedings and at the time of the Court Proceedings, there is some rent outstanding.

Ground 11 - There is a history of being persistently behind with the rent.

Ground 12 - The Tenant has broken one or more of his obligations under this agreement.

Ground 13 - The condition of the premises or the common parts has deteriorated because of the behaviour of the Tenant, or any other person living there.

Ground 14 - The Tenant or someone living or visiting the premises has been guilty of conduct which is, or is likely to cause, a nuisance or annoyance to the neighbours; or that a person residing or visiting the Premises has been convicted of using the premises, or allowing it to be used, for immoral or illegal purposes, or has committed an arrestable offence in or in the locality of the premises.

Ground 15 - The condition of the furniture has deteriorated because it has been ill treated by the Tenant or someone living at the premises.

Ground 17 - The Landlord was induced to grant the tenancy by a false statement made knowingly or recklessly by either the Tenant or a person acting at the Tenant's instigation.

9 SPECIAL or ADDITIONAL CLAUSES

9.1 Pets Exclusion

The Tenant agrees neither to keep any animals, birds, reptiles or rodents in or on the premises, nor to allow his invited guests or visitors to do so. Should the Tenant be in breach of this clause, he will be responsible for the reasonable costs or rectification of any damage caused or for any appropriate de-infestation, cleaning, fumigation, etc required.

9.2 Joint Tenancy

Where a joint tenancy exists with two or more sharers and the tenancy is terminated by one of the joint tenants before the end of term as laid out in the tenancy agreement, the Tenant agrees to contact the Landlord in order to agree the procedure.

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9.3 Smoking Exclusion

The Tenant agrees neither to smoke in or on the premises, nor to allow his invited guests or visitors to do so. Should the Tenant be in breach of this clause, he will be responsible for the reasonable costs or rectification of any damage caused or for any appropriate cleaning, fumigation, etc required.

9.4 Break Clause

At any time after the initial fixed term of this tenancy, either party may invoke this break clause by providing a minimum of two months written notice, or one month written notice before the end of the calendar month thereafter by tenant and two month written notice before the end of the calendar month thereafter by the landlord. At the end of such notice the tenancy shall end and all obligations and responsibilities shall cease; subject nevertheless to any claim by either party against the other in respect of any breach of any of the terms and conditions of the agreement.

9.5 Inventory / Check-In / Check-Out Costs

Both parties agree that the cost of a professional inventory and check in (if any) is to be met by the Landlord. The cost of a professional check out (if any) is to be met by the Tenant.

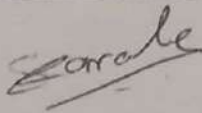
9.6 Rent Review

The rent due referred to within this agreement will be increased as from the annual anniversary of the tenancy commencement date. This percentage rent increase will be applied to the rent by using a multiple calculated as one and a half times the retail price index (RPIX) published in the month before this increase becomes due.

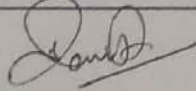
10 SIGNATURE of the PARTIES

This agreement contains the terms and obligations of the tenancy. It sets out the promises made by the Landlord to the Tenant and by the Tenant to the Landlord. These promises will be legally binding once the agreement has been signed by both the parties and then dated. Whilst every attempt has been made to compose this agreement using plain and intelligible language, it inevitably contains some legal terms or references. **If either party does not understand this agreement, or anything in it, it is strongly suggested that you ask for an explanation before signing it. You might consider consulting a Solicitor, Citizens Advice Bureau or Housing Advice Centre.**

LANDLORD(S) SIGNATURE and Date

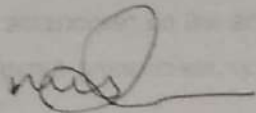
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TENANT(S) SIGNATURE and Date


R. Mubir 25.10.2020
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WITNESS Address and SIGNATURE

 25.10.2020

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